Model Constitution

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Preamble

We, the residents of Hall of Residence - , with the vision of

- having a Democratic administration constituting of general body representatives and wardens appointed by the Institute,
- having a smooth and transparent system where people feel free and motivated to participate in it,
- providing an optimum environment to the resident to develop their academic and co-curricular skills,
- providing facilities for the best possible experience of residents

Chapter 1
General Guidelines

All the terms used in the Constitution are with reference to the Hall of Residences of IIT Kanpur unless mentioned otherwise. The term Institute refers to the Indian Institute of Technology, Kanpur.

1.1 A resident of a Hall shall be that student or person who has been allotted a room in the hostel on a regular basis with proper permission and is charged establishment.
All the residents of a Hall shall constitute its General Body.

1.2 The general body of a hall of residence shall elect their representatives, who along with the warden-in-charge and other wardens shall constitute the Hall-Executive Committee (referred to as HEC fromtheire) to represent the collective views and interests of its residents, to supervise and coordinate the administration and other corporate activities of the hall, to manage the day-to-day executive tasks possibly through sub-committees, to monitor budgetary discipline, to ensure an environment of overall development and to arbitrate in intra-hall disputes as far as possible. The interest of the general body shall be given utmost preference.

1.3 In all decision-making bodies of the hall, the governing principle shall be democratic. Majority decisions shall be binding on all members provided Institute rules are not contravened.
Individuals holding viewpoints different from a majority decision shall have the right to bypass the corresponding body and report directly to any or all higher bodies. Implementation of such a decision shall continue unless the higher body stays it through official channels.
However, no decision that prevents a registered student from carrying out their program of studies may be taken or implemented at hall level under any circumstances.

1.4 The Warden-in-Charge shall be the interpreter of the constitution. However, under special circumstances, the HEC may overrule the interpretation with a special majority i.e. at least 2/3rd of the members present and voting, and half the total strength of the HEC.

1.5 The HEC, at all times remains answerable to the general body.

Information or reason behind any decision or action taken by any HEC member can be sought by any hall resident at any time and must be answered within 48 hours.
The general body shall be kept informed of all major decisions taken by all executives/ bodies.

1.6 Meetings of the HEC shall be open to all the residents. Agenda notices of all meetings shall be notified to the General body. While the meeting is in progress, non-members present will be allowed to participate in the discussion. In exceptional cases, the Chairperson of the HEC at their discretion can ask non-members to express their views through the members.

1.7 Apart from individual executive functioning, the members of every committee shall work as a team, and shall assist one another, as and when the need arises.

1.8 The guiding spirit in the expenditure of Hall and Mess Funds shall be Economy at all stages and in all possible ways.
All purchases shall be made, as far as possible, in bulk to economize on transport charges. The actions taken should be environment-friendly.

1.9 The student members of HEC shall recommend disciplinary action against any person(s), against whom charges of violation of hall's rules have been made and are found to be true, after giving him/them an appropriate opportunity to defend himself/themselves.
The recommendation shall be forwarded to the Warden In charge for necessary action.

1.10 The proceedings initiated by the HEC and not completed within its term shall be continued by the next HEC. As a result, a new HEC may:
(a) Extend the time limit for the clearance of the outstanding amounts
(b) Mitigate punishment (or)
(c) Enhance punishment
In all such cases, the convener of the new HEC shall be responsible for informing the general Body in such case.

1.11 In all matters of general interest, a resident shall be subordinate to the Committees, which are subordinate to the HEC. The HEC shall be subordinate to the General Body.
The Hall Constitution shall be the supreme law of the hall.
It cannot be dissolved and must be adhered to under all circumstances.

Chapter 2
Structure

2.1 Hall Executive Committee (HEC)

2.1.1 The Hall Executive Committee shall constitute of the Warden In-Charge, Mess Warden and Maintenance Warden and the following members, who shall be elected from the general body :

1. President
2. Finance Secretary
3. Mess Secretary
4. Maintenance Secretary
5. Sports Secretary
6. Students' Gymkhana Representative (Special Invitee)

2.1.2 The Hall may decide to have additional positions or appoint multiple students to a particular position in its HEC, if necessary for functional distribution of responsibilities.
The additional positions may include, but not limited to:
i) Media and Cultural Secretary
ii) Science and Technology Secretary
iii) Common Rooms Secretary
iv) Website Secretary
The mandate and responsibilities of such positions shall be clearly laid down and approved by the HEC.

2.1.3 The Warden-in-charge shall be the ex officio Chairperson of the HEC. The President shall act as the convener of the HEC to the Chairperson.

2.1.4 The Gymkhana Representative shall be appointed by the Students' Senate and shall not carry voting rights.

2.1.5 The Sports, Media and Cultural, and Science and Technology Secretary shall be the members of the respective councils of Students' Gymkhana.

If any of these positions does not exist, the HEC president shall appoint a hall representatives to these councils through a nomination process.

2.1.6 If the composition of hall residents is made up of multiple sections (as determined by the HEC) of the student community, then for each section with strength more than 10% of the total strength of the Hall shall have a representation in the HEC.
If no student from such a section is elected to the HEC, then a representative from the section shall be appointed to the HEC as a permanent special invitee (without voting rights). Such sections cannot be based upon the stage of program or Department of study.

2.1.7 The Warden-in-charge and other wardens must be appointed by the Director from a panel of names of faculty members, to be recommended by the HEC.

2.1.8 The HEC shall take decisions on the basis of simple majority.
Every member of the HEC shall carry an equal vote.
In the case of a tie, the decision of the Chairperson, HEC shall be final.

2.2 Committees

2.2.1 The Hall Mess committee shall be responsible for overall functioning and decision making of the mess, which includes its operations, accounts, stocks, mess menu, feedback & inspection.

2.2.2 The Mess Committee shall consist of the Mess warden as its ex officio Chairperson and the Mess Secretaries as its ex-officio members.

2.2.3 The Hall may decide to have additional committees if required. These may include, but not limited to:
i) Maintenance Committee
ii) Finance Committee
iii) Student Activities Committee
The mandate and responsibilities of such committees shall be clearly laid down and approved by the HEC.

2.2.4 The committee Chairperson shall preside at committee meetings. In the case of absence of the Chairperson, they shall appoint one of the elected secretaries (ex officio members) as the acting Chairperson.

2.2.5 The committee shall elect a convener among its members by a simple majority. They can be removed from office with a simple majority in a committee meeting or by the HEC by 2/3rd majority.

2.2.6 It shall be the responsibility of the convener to call and convene committee meetings whenever requisitioned by :

1) Any ex officio member
2) 1/3rd of the committee members
3) 10% of the general body.

2.2.7 There shall be total 5-10 members in the committees. The members of the committee shall be nominated as per clause 3.3.3. Nomination process should begin after the HEC elections are over.

2.2.8 The committee shall keep a stock of the items under them and shall be liable to present it when asked to do so in HEC or General Body meetings.

2.2.9 Normally all the decisions pertaining to a committee shall be taken in the committee meeting. However, under extraordinary circumstances, the HEC members may take ad-hoc decisions. These decisions shall be subject to ratification in the committee meeting.

2.2.10 The committee may, at its discretion, assign specific responsibilities related to the work of the committee to its members for better and smoother functioning.

2.2.11 The president holds the right to attend any of the committee meetings, and it shall be binding on their part if they are invited.

2.2.12 Finance secretary shall be responsible for all the finances of all committees except the mess committee. Any decision related to finances shall be taken in their presence as a special invitee in the committee meeting.

Chapter 3
Elections and Removal from Office

3.1 General HEC Elections

3.1.1 The general elections shall be held in the month of March or August unless specified in the hall constitution otherwise. All elected members shall serve for a term of one year till charge is handed over to new HEC.

3.1.2 The electorate shall comprise of all the residents of the hall. Each vote shall carry an equal weight.

3.1.3 The HEC shall appoint the Election Commissioner of the Hall within 1 month of the charge-handover, and decide upon the date of the elections. The Election Commissioner shall be responsible for conducting all elections and referendums in the Hall, and shall be appointed by the HEC as per clause 3.xx, in consultation with the Chief Election Officer (CEO), Students' Gymkhana.

3.1.4 The Election Commissioner in consultation with the HEC and CEO, Students' Gymkhana shall constitute an election committee to conduct the elections.

3.1.5 The Election Committee shall :

i) be headed by the Election Commissioner of the hall

ii) normally comprise of 3-7 members

iii) have the CEO, Students' Gymkhana or their nominee as an ex-officio member

iv) enforce the Code of conduct, detailing schedule, rules and regulations for the elections.

3.1.6 The CEO, Students' Gymkhana as an external observer throughout the election procedure, who shall report any violation of rules to appropriate authorities.

3.1.7 The election committee shall be the sole body with the responsibility of conducting, making rules and increasing participation during the election period. For this purpose, the election committee may have as many volunteers as required, and may ask for assistance from the HEC and the CEO, Students'

Gymkhana. Except for this, the HEC shall not interfere in elections in any capacity.

3.2 Call for Nominations

3.2.1 The election commissioner shall circulate the code of conduct to the general body at least 24 hours before the call for nominations.

3.2.2 The President shall send the notice of Call for nominations. Every resident of the hall shall be eligible to contest in the elections unless they are barred from holding a position of responsibility by the institute on academic or disciplinary grounds.

3.2.3 Candidates shall be allowed to file nominations for more than one position simultaneously, but they must withdraw their nomination from all except one position before the scheduled time of withdrawal is over.

3.2.4 Election commissioner shall call for re-nominations for all the positions for which nominations are not filed.

3.2.5 Every candidate shall be proposed by at least one and seconded by at least two residents of the hall. Any member of the HEC or Election committee cannot propose or second a candidate.

3.3 Campaigning

3.3.1. All the candidates must submit a manifesto, duly ratified by the election commissioner, failing to which shall lead to cancellation of nomination of the candidate. The election commissioner must inform and provide all the residents access to these manifestos through a common domain.

3.3.2. Candidates should be provided a time period of at least three days for campaigning. This campaigning period shall end at least 24 hours before the elections.

3.3.3. The election committee should take initiative in organizing a Soapbox to provide candidates and residents a better opportunity for interaction.
This may be organized between the end of campaigning period and the start of polling.

3.3.4 Any hall activity shall be held only after the due permission of the Election Commissioner.

3.3.5 Any violation of rules of the constitution or the Code of Conduct shall be immediately reported to the Election Commissioner, who shall take appropriate action after investigation of the complaint, including cancellation of candidature.

3.4 Polling and Results

3.4.1 Envelope voting shall start two days before the actual voting starts. The procedure for this should be decided and informed by the election committee. These names must be then removed from the voter's list and these votes should be opened only at the time of counting.

3.4.2 There should be an option of no preference for each position. A position shall be declared vacant if the number of no preference votes is more than each individual candidate. Any candidate with votes less than no preference votes should never hold that position under any circumstances.
For positions in which more than one (say n) candidates are to be elected, every voter should cast n equi-preference votes. Voters reserve the right to cast any number of no preference votes among these n choices.

3.4.3 All the candidates with votes less than no preference votes shall be declared unsuccessful. Among the remaining candidates, the candidate with the most number of votes stand elected. For positions in which more than one (say n) candidates are to be elected, all candidates with less than (total no preference votes divided by n) votes shall be declared unsuccessful. Best n candidates from the remaining candidates shall stand elected.

3.4.4 One representative of each candidate shall be allowed to be present as a nominee at the time of counting of votes. The candidate himself shall not be allowed to be present at the time of counting.

3.4.5 Elections results must be tabled in front of Warden in-charge for noting, however they cannot reject these results.

3.4.6 Any candidate requesting a recount shall submit a request in writing to the election commissioner within 12 hours of the announcement of the results of the count. The procedure for recounting shall be the same as the standard procedure.

3.4.7 In case multiple candidates receive an equal number of votes, the final decision shall be made by the Election Commision and the Outgoing HEC through lottery in the presence of the candidates.

3.4.8 If the Election Commissioner is unable to satisfy the grievant, they may forward the grievance to the Warden-in-charge.

3.5 By-Elections

3.5.1 A position (apart from the position of wardens) in the HEC shall be said to have fallen vacant under the following circumstances :

I. If any student is not elected to that position during elections, then the position shall be said to have fallen vacant on the date of charge handing over to the new HEC.
II. If they submit their formal resignation to the Warden-in-charge, the position shall be considered vacant from the date on which the resignation is accepted.
III. If they are removed fromtheirposition as per clause 4.4, the position shall be said to have fallen vacant from the date of this decision.
IV. If they fail to satisfy any criterion under 3.2 or if their CPI falls below 6.0 (for UGs) or 7.0 (for PGs). Every HEC member shall have this minimum CPI throughout their tenure.
V. If they are no longer a resident of the hall.

3.5.2 If the position of President falls vacant before the by-elections, the HEC must appoint one of its student members as the caretaker for the position of the President by simple majority. The HEC may also appoint students in an officiating capacity for other vacant positions in the HEC through nominations as per clause 3.6.2. These positions shall still be considered as vacant for the purpose of by-elections.

3.5.3 A by-election shall be held for any student position that falls vacant. Unless stated otherwise, all procedures to be followed for by-elections shall be same as that for general elections.

3.5.4 An incumbent HEC member cannot contest for any other position in the HEC for the same term. A student HEC member must resign from their current position in the HEC before contesting for any other position in the HEC.

3.6 Nominations

3.6.1 The president shall circulate the call for nominations for all positions in the hall as per the Constitution, or other positions as decided by the HEC.

3.6.2 In the case of a position being left vacant even after by-elections, the HEC shall constitute a panel. The panel shall consist of all the existing HEC members. The panel shall decide the results on the basis of a simple majority.

3.6.3 Any student appointed to a position through the nomination procedure (not elected by the general body of the Hall), may be removed by the HEC through a simple majority.

3.7 Handing Over of Charge

3.7.1 The HEC shall hand over its charge in a joint HEC meeting with the respective incoming and outgoing HEC. All other committees and position shall also hand over the charge along with the HEC. All members of the incoming HEC (or their nominees) shall be present in the meeting.

3.7.2 The outgoing President shall convene the joint HEC meeting. This meeting shall be held at least one week after, and within a month of the declaration of general election results.

3.7.3 All HEC members and conveners of each committee shall present their report, detailing the recommendations, current status and activities during the tenure. These reports shall be preserved in official documents.

3.7.4 Acting in Absentia
If a secretary of HEC is going to be absent from the hall for a period of more than 48 hours at once or is ill, they shall appoint another resident to officiate duringtheirabsence. The prior notification shall be given to the general body and the hall office.

Chapter 4(a)
Mode of Functioning (Meetings)

4.1 Convening and Conducting General Body Meetings (GBM)

4.1.1 A GBM can be requisitioned by any of the following persons:

a. Any warden or the president.
b. 1/3 of the existing HEC acting as a group
c. A group of at least 10% registered residents

The requisition must be submitted to the President of the hall
(i) with details and signatures affixed if in writing
(ii) with details attached and CC to IITK e-mail IDs.

4.1.2 Each GBM shall require a prior notice of at least 24 hours to the General Body and the Wardens and this notice shall list the agenda.

4.1.3 The HEC Chairperson as per clause 4.4.5 shall chair the GBM. All decisions taken at a GBM shall be official and binding.

4.1.4 All HEC members and special invitees (or their nominee) must be present in the GBM. A show-cause notice must be issued if they are not present in the meeting.

4.1.5 The HEC convenor shall convene all GBMs. They are responsible for circulating the notice with agenda and minutes of the GBM. Normally the minutes of a meeting must be circulated within a week of the GBM.

4.1.6 The first agenda of each meeting shall be to confirm the minutes of the previous GBM followed by Announcements and remarks, which shall include decisions taken over the mailing list. The last agenda shall be questions and remarks. Fresh agendas during the meeting may be accepted with the permission of the Chairperson.

4.1.7 The convenor shall invite agendas for the meeting from the general body before the meeting. Major decisions taken till date should be discussed in the meeting.

4.2 HEC meetings

4.2.1 Normal HEC meetings :
HEC meetings shall be held as and when required. The convener of the HEC shall be responsible for informing the general body about these meetings.

4.2.2 Requisitioning HEC meetings :
Apart from regular meetings, a requisition meeting of HEC can be held if sought by any of the following.

a. Any student member of the HEC (including Gymkhana Representative).
b. A group of at least 10% general body members.

The requisition must be submitted to the president with details and signatures affixed in writing or through e-mail.

4.2.3 Finalizing the agenda :
The convenor shall finalize the agenda of an HEC meeting after consulting each member. The agendas of the meeting shall be according to clause 4.1.6. The Convener shall be obliged to include an item on the agenda if any HEC member specifically requests it. A Simple majority may reorder the items during the meeting.

4.2.4 Notice of HEC meetings :
President, as Convener of HEC, shall send the notice for each HEC meeting along with agenda, venue and time to all its members. The notice shall also be given to the general body through any common platform. All these notices shall be given at least 12 hours prior to the meeting.

4.2.5 The Chairperson shall preside at all the committee meetings and general body meetings.

4.2.6 In the case of a tie during voting in a committee meeting, the decision of the Chairperson shall be the final decision of the committee.

4.2.7 The warden-in-charge shall be the ex-officio Chairperson of the HEC. In their absence, any warden of the hall shall act as ex-officio Chairperson of the HEC. If all wardens of the hall are absent, the president shall preside over the meetings of the HEC.

4.2.8 All HEC meetings shall normally be open-door meetings. However, under special circumstances, a simple majority may call the meeting as a closed door meeting

4.2.9. The annual hall calendar, detailed budget and charge-handover shall be considered in an open HEC meeting.

4.2.10 All the matters referred to the hall by the HMC and CoSHA must be included as an agenda for discussion in the immediate next HEC meeting. All the decisions agreed to by the Hall in the HMC and CoSHA must be noted in the meeting and followed by appropriate action for its implementation.

4.2.11 Quorum and reconvening :
The quorum of an HEC meeting shall be half the maximum current strength of the HEC for the transacting of any business. The quorum shall be required for the entire meeting. No member shall leave during a meeting without the permission of the Chairperson. The adjourned/ canceled meeting shall normally be reconvened within 24 hours of adjournment.

4.2.12 Point of order :
If a particular clause of the Constitution is being violated during the conduct of the meeting, this can be pointed out by any member/non-member by raising a point of order. In such a case, the matter shall be taken up for immediate discussion, and the HEC shall give a ruling on such a motion immediately, before proceeding to any other business.

4.2.13Note of dissent :
A simple majority shall normally take all decisions. However, any member or special invitee may submittheirdissent in writing to the convener within 24 hours of the close of the meeting. A note of dissent thus raised shall necessarily be included as it is in the minutes of that meeting.

4.2.14 The draft minutes of a meeting of HEC and various committees shall be prepared and sent to all the members of that committee by the convenor. Any hall resident may ask for the minutes' draft of a meeting after one week.

4.2.15 A fresh meeting of the HEC may not be held until after the draft minutes are published. After these draft minutes are ratified at the next HEC meeting, they shall be the official minutes and shall be preserved as annual records.

4.2.16 In case more than one-third of the HEC disagrees with the decision, it may ask the president to call a GBM as per clause 4.1.1 where the final decision shall be taken.

4.2.17 The warden-in-charge must ensure that all decisions taken in General Body or HEC meeting are implemented.

4.2.18 All the HEC members and the sub-committees shall present their mid-term and end-term reports at the respective stages of their tenure in open HEC meetings. The end-term report shall then be forwarded to CoSHA for noting.

4.2.19 The Finance secretary shall give the information about the expenditures incurred by the hall till date in every HEC meeting.

4.3 REFERENDUM IN GBM

4.3.1 **Censure Motions**

Any student HEC member can be reprimanded for misconduct or dereliction of duty through a Censure Motion:

1. All Censure Motions shall be submitted in writing to the HEC Chairperson.
2. All Censure Motions shall be duly proposed and seconded by at least one member of the HEC.
3. No Censure Motion shall be put to vote to unless:
    a. The defendant has been given an opportunity to the satisfaction of the defendant to defend themselves before the HEC.
    b. Adequate discussion has followed the defendant's defence.
    c. In case of repeated absence of the defendant the HEC may pursue the Censure motion.
4. The defendant shall be asked to leave the session by the Chairperson when the Censure Motion is put to vote. The defendant shall not be entitled to vote on the Censure Motion.
5. Voting on a Censure Motion shall be by secret ballot if so demanded by even one member of the HEC.
6. All Censure Motions shall be subject to a simple majority in the HEC.
7. Notice of the Censure motion, once passed, shall be sent out to the General Body along with the details of the individual censured, their position and transgressions. Further, depending on the severity of the transgressions, after passing the Censure Motion, the HEC may take one or more steps of those given below:
    a. Direct the student to mention the details of the Censure Motion along with the achievements and work done as a part of holding that position.

b. This shall be informed to the Placement Office and other authorities as well to ensure that it is implemented.
c. The details about the Censure Motion shall be submitted to the Office of the Dean of Academic Affairs to be added to the individual's records as maintained by the institute.

4.4 No- Confidence Motion/Impeachment Motions:

1. All No-Confidence Motions against the student HEC members shall be submitted in writing to the Chairperson.
2. All No-Confidence Motions shall be duly proposed by any hall resident and seconded by at least two HEC members.
3. No-Confidence Motion shall not be put to vote unless:
    a. The defendant has been given an opportunity to the satisfaction of the defendant to defend themselves before the HEC.
    b. Adequate discussion has followed the defendant's defence.
    c. In case of repeated absence of the defendant the HEC may pursue the Censure motion.
4. The defendant shall be asked to leave the session by the Chairperson when the No- Confidence Motion is put to vote.
5. Voting on a No-Confidence Motion shall be by secret ballot.
6. A No-Confidence Motion against any student HEC member shall require a 2/3rd majority in the HEC to be passed.
7. In case a No-Confidence Motion is passed, the Defendant shall stand unseated from the office on the declaration of the results of the voting.
8. A No-Confidence motion against any Warden shall be in the form of an appeal to the Director, duly signed by at least 2/3rd of the HEC AND more than half of the general body of the hall, forwarded through the President, Students' Gymkhana. The Director shall remove that Warden in such a case, and appoint any one of the other 2 Wardens to take the responsibility of that Warden till the appointment of some other individual to that post.

4.5 Emergency Meetings

4.5.1 In the case of an emergency, if deemed necessary, an Emergency meeting may be called, which may be open/closed door as deemed fit by the committee.

4.5.2 All the members and invitees of the meeting shall be informed of the meeting, anytime before the commencement of the meeting. The notice for the meeting may or may not contain any other information about the meeting except the time and venue.

4.5.3 The agenda for the meeting shall normally consist of only one agenda. Any Constitutional amendment cannot be discussed in the meeting.

4.5.4 All the decisions taken in an emergency meeting shall have the same implications as if taken in a normal meeting. However, a regular meeting shall be requisitioned within 7 days. Agendas of this meeting must include the explanation of the reason of requisitioning the emergency meeting and take a note of its minutes.

4.6 Grievance Redressal

4.6.1 All grievances must be filed within 48 hours of the announcement of the decision/action against which grievance is being filed. The concerned body shall respond to the grievance within 48 hours of the filing of the grievance.

4.6.2 If the grievant is not satisfied with the response, they shall forward the grievance to the HEC. If the grievance is against an HEC member, they shall not be part of decision-making upon the grievance.

4.6.3 If the grievant is dissatisfied with the response of the HEC, they may forward their grievances to the Students' Senate (or CoSHA) through Gymkhana Representative.

Chapter 4(b)
Mode of Functioning (Powers and Functions)

4.7 Hall Executive Committee

4.7.1 All the internal issues and corporate activities of the hall directly fall under the purview of the HEC.

4.7.2 The HEC shall supervise the functioning of other committees of the hall.

4.7.3 It shall be binding on the part of the HEC to respond to the queries raised by a general body member within 48 hours. Normally, it shall initiate any required action within 7 days.

4.7.4 It shall serve as the main forum for expressing views of the residents.

4.7.5 It shall ratify the students to various positions (except HEC), alongside recommending restructuring, if felt desirable, of the same.

4.8 Mess Committee

4.8.1 Mess committee would be responsible for overall functioning and decision making of the mess, which includes its operations, accounts, stocks, mess menu, feedback & inspection.

4.8.2 The final mess bill shall be confirmed by the mess committee.

4.8.3 The mess committee shall finalize the mess menu.

4.8.4 The mess committee is responsible for all the financial aspects of the mess. Committee members shall sign the bills for the items purchased by the mess and keep a check on the prices.

4.8.5 It shall take steps to make the mess operation system transparent and accessible for each resident of the hall.

4.8.6 It shall conduct complete audits & stock taking when it comes into power and periodically thereafter.

4.8.7 It is responsible for the stocks of the mess and should keep a proper check on the quality of the items purchased by the mess.

4.8.8 It shall also be responsible for maintenance and infrastructural requirements of the mess and resolve such issues on a regular basis.

4.8.9 It shall supervise the functioning of the Mess manager, mess workers, and daily wage workers.

4.8.10 It should take feedback at least twice a semester upon the food quality and mess service from the general body and discuss the actions needed as suggested by the feedback.

4.8.11 It shall respond to complaints and suggestions of the residents on a Daily Basis.

4.8.12 It shall ensure proper use of monthly funds given for mess maintenance and take appropriate action to fulfill any requirements in terms of machinery or maintenance.

4.8.13 It shall supervise the day-to-day functioning of the canteen & ensure that the items sold in the canteen are fairly priced and are of requisite quality.

4.8.14 It shall ensure that the mess is running according to the contract terms. It shall conduct regular inspections in the mess. It should also ensure that the terms and conditions laid down in the canteen contract are adhered to as per CHAPTER

4.9 Wardens

4.9.1 Warden shall be the approving authority for any decision or action taken by the committee as its chairman.

4.9.2 Wardens are responsible for every activity of the HEC members. Warden-in-charge holds the power to call an HEC meeting/GBM at any time with at least 24 hours of prior information. Respective wardens may call their committee meetings anytime with at least 12 hours of prior information.

4.9.3 The Warden-in-charge shall be the official superior for all Hall employees.

4.9.4 The warden-in-charge is entirely responsible for all the functioning and administration of the hall in all aspects.

4.9.5 The warden-in-charge with other wardens shall operate the hall account.

4.10__President

4.10.1 The president being the elected representative of the general Body, represents the hall at all forums.

4.10.2 They shall be a member of the Council of Students for Hostel Affairs and Hall Management Committee (CoSHA & HMC) and must attend all its meetings. They shall be a part of the Students' Senate as per the Students' Gymkhana Constitution and represent the views of the Hall residents.

4.10.3 The president holds the power to call an HEC or General body meeting within 24 hours.

4.10.4 They hold the right to attend all committee and subcommittee meetings at all times. However, it would be mandatory for him to attend the meeting if the committee specifically requests him to do so.

4.10.5 As the convener of the HEC, they are responsible for putting notices, organizing General Body meetings, HEC meetings, circulating the agenda and minutes and keeping a copy of records related to the HEC.

4.10.6 As the representative of the HEC, they shall act as the medium of communication between residents and the HEC, as and when required.

4.10.7 They will have to ensure that students are abiding by the rules and regulations of the hall. They would be responsible for proposing fines on students in case of violation of rules on the behalf of the HEC.

4.11 Mess Secretaries

4.11.1 They shall be responsible for proper functioning of the mess and the mess committee.

4.11.2 They should keep the General body duly informed of all decisions of mess committee, including any changes in messing procedure as per the clause 1.6.

4.11.3 They shall be an integral part of the decision making for short and long term planning of the mess by the wardens, Students' Gymkhana, Institute's central Hall Office (C.H.O.), and other bodies.

4.11.4 They shall sign the bills for the items purchased by the mess and keep a check on the price. They shall present the mess bill to the mess committee and the HEC.

4.11.5 Within a week of taking power, with the help of the committee, they shall conduct a complete and exhaustive audit with the concerned members of the outgoing mess committee.

4.12 Maintenance Secretary

4.12.1 The maintenance secretary would be responsible for all the issues related to maintenance of the hall. This includes maintenance of common areas (including quads, toilets), common rooms (including Reading Room, Computer Centre, T.V. room, guest rooms), gardens and lawns, sanitation facilities etc.

4.12.2 It shall assess long-term maintenance and infrastructural requirements of the various amenities of the hall and bring these requirements to Institute authorities independently or through appropriate channels.

4.12.3 It shall identify recurrent and pending maintenance problems of the Hall and initiate remedial action. It shall respond to all complaints regarding issues falling under its purview.

4.13 Finance Secretary

4.13.1 They shall prepare and present the annual hall budget for the hall after consultation with the other HEC members.

4.13.2 They shall supervise the expenditure incurred by the executives under various heads of Budget.

4.13.3 They shall cooperate with the relevant HEC executive in ensuring that all terms of contracts entered into by the Hall are met by the contracting parties as per clause 6.5.

4.13.4 They should be notified before any monetary withdrawal and shall ensure that relevant bills are submitted in time.

4.13.5 They shall maintain a public record of the Hall budget and financial expenditures.

4.14 Sports Secretary

4.14.1 He shall be responsible for promoting all aspects pertaining to games and sports activities in the Hall. They shall be the representative of the hall in all matters related to games and sports activities.

4.14.2 He shall take responsibility by taking steps such as organizing intra-hall tournaments to promote games and sports activities in the Hall. They shall also arrange for an easily accessible first-aid box for Hall residents.

4.14.3 Hall's sports equipment would be undertheirresponsibility and They should provide students with the equipment (non-consumables) when asked for through a procedure decided by him.

CHAPTER 5
OFFICIAL DOCUMENTS

5.1 Types of Record

5.1.1 All documents pertaining to Official Hall Functioning shall be categorized into three types of records namely, the Permanent Record, the Five Yearly Record and the Annual Record.

5.1.2 The Permanent Record shall consist of the following:

a. Constitution
b. Constitutional Amendments
c. All standing Institute rules (including HMC and COW resolutions).

5.1.3 The Five Yearly Record shall consist of the following:

a. Group (a) –
    i. Stock and Mess Bill Registers and Miscellaneous Expenses Register of the Mess.
    ii. Copies of contracts entered into by the hall.

b. Group (b) –
    i. Minutes and reports of all the committees in charge handover meeting.
    ii. All HEC budgets as approved by the HEC and wardens.
    iii. All standing rules for day-to-day Hall affairs.
    iv. Summarized report of the annual record of each year.
c. Group (c) – All successful censure motions.
d. Group (d) – Summarized annual audit report.
    i. Passbooks and Cheque Books.
    ii. Account ledger.

All the records have to be cross checked and reported by the Finance secretary.

5.1.4 The Annual Record shall consist of the following:

a. GBM resolutions
b. Text and results of referendums.
c. All other documents of Hall functioning including all official notices by the Institute Wardens and HEC Members.
d. Notices and Minutes of all meetings.
e. All bills and vouchers submitted to the Hall for payment.
f. All Hall dues list.
g. Complete Audit Report.
h. Menu Register.
i. Extra Sales Register.
j. Coupon sales record.
k. Rebate Record.

5.2 Maintenance and Availability

5.2.1 The Five yearly Records shall consist of dated documents. Each document shall be introduced into the record immediately after it is produced and shall not be removed or modified in any way for the next five years. Every term, the HEC shall study the documents and decide whether a document is to be retained or discarded or whether a suitable summary of its contents be prepared by the HEC for the record instead of the documents itself. No document may be removed from the Five yearly Record except in this manner.

5.2.2 The Annual Record shall be maintained for one year in a manner similar to the Five yearly Record. Once every year the HEC shall prepare a summary of the then Annual Record. This shall be placed in the Five Yearly Record along with any supporting documents deemed necessary by the HEC.

5.2.3 The overall responsibility for maintenance, updating in security and availability of all records shall rest with the Warden-in-charge. They may assign the Hall office/ mess manager or HEC members to hold some/all of these documents ontheirbehalf.

5.2.4 The permanent record shall be an Erase-Prohibited Log to which only increments may be made. This record shall be maintained permanently.

5.2.5 All documents of Hall functioning shall be available to the HEC, without any restriction in scope and access.

5.2.6 All documents of Hall functioning shall be available to all general body members in the presence of the office superintendent /mess manager during specified working hours.

5.2.7 All documents of Hall functioning shall be available completely without restriction to special committees if approved by the HEC.

5.3 Mess Related Documents:

5.3.1 The Mess related documents shall include the following:

a. All standing Mess Rules, resolutions on Affairs and Mess related notices.
b. Stock and Mess Bill Registers and miscellaneous expenses register.
c. All contracts for mess supplies.
d. All bills and vouchers submitted to the Mess Manager or concerned with Mess purchases.
e. All Hall dues list.
f. Menu Register.
g. Extra Sales Register.
h. Coupon Sales Record.
i. Rebate Record.

5.3.2 All the mess related documents should be hard bound registers with ruled pages. The pages shall also be numbered sequentially from beginning to end. In those cases, where entries are not necessarily made in consecutive pages the manager shall prepare an index at the beginning of the register listing type of entries on different pages. Proper Accounting norms shall be followed in maintaining these registers.

5.3.3 The mess stock register of consumable items is the most important document of long-term use in the mess. The stock register shall be regularly inspected and tallied with the physical stock present in the mess by the mess

secretary and other members of the committee. The frequency of inspections by the mess Committee shall be at least once a week. Each inspection shall be indicated in the register as a special entry along with other entries and this entry shall include the date of inspection, the signature of the inspector and the designation of the inspector.

5.3.4 Entries in a Stock Register shall be made in chronological order on successive lines. Each entry shall be dated. Each entry shall contain the date, name of the item, name/source of supply, rate of the item, the quantity of the item, total price, and quantity issued and/or received updated balance. All the records of a month should be in a single register.

5.3.5 Every new stock register shall be certified by the Warden-in-Charge or the Mess Warden giving the date and the total no. of pages in the register. At the time of preparing a new stock register, the closing stock figures of the previous stock register shall be verified and entered as opening stock figures in the new register through a dated and signed entry by the Mess Secretary. The handing over shall be recorded as a special entry in the documents, duly signed and verified by the Warden (Mess) and Secretary (Mess) and HEC shall be informed of the same.

5.3.6 All unaccounted defaults in the stocks shall be deemed the responsibility of the mess manager. The durations of a stock register shall be for a maximum of one year. All entries in the register shall be in ink and no strike-over or deletions or rewritings shall be permitted without getting the same checked and countersigned by the mess Committee within 24 hours. All entries shall specify running totals/balance and these shall be cross-checked at the time of inspection and stocktaking. No consumable can be taken out of the mess except through official loans or sick diet.

5.3.7 The items borrowed, sent or returned shall be promptly entered in the stock register and duly signed by the Mess Committee within 24 hours. Normally no mess utensils or other equipment may be taken outside the mess unless permitted by the Mess Committee.

5.3.8 Another register should be maintained for non-consumable items such as utensils, furniture, and furnishings.

5.4 Finance Related Documents

5.4.1 The finance related documents shall include the following:

a. All approved annual budgets.

b. Summarized annual audit reports of the past five years.
c. All contracts entered into by the Hall.
d. All passbooks and cheque books.
e. Account ledgers.
f. All bills and vouchers submitted to the hall for payment.
g. All Hall dues list.
h. Complete audit report of the preceding financial year.
i. Mess Bill Registers.

5.4.2 The Mess Bill as approved by the Warden (Mess) and the hall dues as finally declared shall include the following common entries:

a. The total number of days in the mess month.
b. Basic Daily Mess Rate (new BDMR will be calculated from this).
c. Details of closing stock, opening stock, inflow (amount supplied to the mess) and cost of consumed quantity of each stock item as verified by the mess stores and supplies secretary.

It will include the following entries per resident, as well:

a. The number of days for which the money is charged.
b. Number of rebate days,
c. Basic bill,
d. Extra items,
e. Individual mess bill,
f. Establishment charges,
g. Total individual hall dues,
h. Recovery from the resident during the deductions from scholarships.

5.4.3 All bills and vouchers submitted to the Hall office for payment shall normally include each of the following details: date, item, rate, quantity, the total amount of charge, and signature of the supplier. Wherever possible printed vouchers with serial numbers should be obtained.

CHAPTER 6
FINANCE

6.0 The annual hall budget shall comprise of:

1. Dean's Capital Fund
2. Hall Development Fund
3. HEC budget as per clause 6.2.1

6.1 Monetary transactions, accounts and Audit

6.1.1 The Finance secretary shall keep a check on the general financial administration.

6.1.2 All payments made by the hall to any party shall be only through a cheque drawn from the hall account.

6.1.3 Finance Secretary shall check/verify all records of receipts and cheque issue register, which states the amount credited/ debited from the bank account.

6.1.4 All bills and vouchers regarding mess submitted to the hall shall be as per clause 5.4.3. Mess Secretary and mess manager must approve all mess bills and vouchers. Any other member of the mess committee may sign in them withtheirpermission.

6.1.5 Payment for any bill will be made only after the concerned HEC member has verified it for the payment. However, no bill/voucher will be accepted as valid and adjusted after validation by Finance Secretary.

6.1.6 The HEC shall set up norms for payment of nominal honorarium to any person for specific activities. Over time payments may be made to Hall employees with the approval of HEC.

6.1.7 After auditing of all accounts of the hall is over, the Finance Secretary shall go through the complete audit report and report in HEC meeting in case of any anomaly.

6.1.8 The secretaries may get an advance outstanding againsttheirname at any time from the HEC budget. However, the reason and expenditure plan should be mentioned clearly and shall have approval of the Finance Secretary or the president.

6.1.9 Secretaries have to submit their bills/vouchers regularizing the advance within 90 days of the issue of the cheque for the advance, failing which no further advance can be given to the concerned HEC member without the specific approval of the HEC.

6.1.10 All advances for the regular mess purchases shall be against the name of the Warden (Mess) only. The mess warden should take personal charge of mess purchases made by cash/ cheque. The mess secretary shall discharge the same functions with reference to the mess budget that Finance Secretary discharges with reference to the Hall budget.

6.1.11 The HEC may allow collection other than the mess bill or dues along with the mess bill. However, conditions of this must be clearly laid down and approved by the Finance secretary and president.

6.2 Mess Finances

6.2.1 The process of declaration of mess bills.
The mess committee shall check, finalize and submit the mess bill to the Mess Secretary within 7 days from the date on which the Mess manager submits the mess bill to the committee.

6.2.2 The Mess bill approved by the Warden (Mess) and the Hall Dues as finally declared shall follow the norms prescribed in clause 5.4.2 .

6.2.3 Mess items that are not supplied by contracts shall be purchased about once every month depending on the stock and market price fluctuations. The Mess Secretary in consultation with the Mess Committee shall give

recommendations to the mess warden on the amount of advance necessary, conveyance arrangements necessary etc.

6.2.4 All stationery and office materials required by the Mess shall be procured only through Hall office.

6.3 Tenders, Quotations and Contracts

6.3.1 It shall be the responsibility of the Hall-office to independently keep track and notify the HEC at least a month in advance of the termination of any contract.

6.3.2 The HEC should then draft the Performa for the tender to be floated and the terms and conditions of the contract.

6.3.3 An advertisement stating the requirements, the application Performa and the instructions to applicants including the applicable minimum terms and conditions as specified in clause in 6.5, as drafted shall be put on the Institute website and at least 10 days time shall be given (during which the advertisement shall remain on the online website) between the publication of advertisement and last date for the submission of bid.

6.3.4 All bids shall be signed, sealed and submitted by the applicant in hall office along with the security deposits. The Hall office shall receive the bid and give a written and signed note of receipt to the applicant. This receipt shall include the date and time of submission. No applicant can submit more than one bid against any tender.

6.3.5 After the last day for submitting the bids is over, the HEC in presence of the wardens and supplier shall scrutinize the bids and reject those which fail to meet the requirements specified in the advertisements.

6.3.6 If less than 3 tenders are received, the deadline for tenders shall be extended if possible. If even then total tenders received are less than 3, tenders may be opened or a fresh tender may be called. If less than 3 bids are found to satisfy these conditions, the same rules would apply.

6.3.7 The HEC in presence of warden shall then consider the remaining bids collectively and formulate its recommendations to the HEC in the form of a comparative statement keeping in mind that the lower the payment the Hall has to make (in case of purchases) or higher the payment receives (in case of disposal of assets) the higher the preference the corresponding bid should get.

The HEC shall finalize its preferences. It may also reject all bids and float a new tender and introduce interviews.

6.3.8 For all these purposes, the president with the Finance Secretary may constitute a sub-committee. However, the HEC as a whole shall stand a second line of the filter.

6.3.9 Purchases can also be made by directly inviting quotations from reputed vendors. The Secretary concerned shall put up a proposal for the purchase of required items to the HEC. Depending on the volume of purchase, the HEC may either constitute a sub-committee for collecting quotations from the vendors or ask the Secretary concerned to get the quotations collected.

6.4 Compulsory terms and conditions for all contracts

6.4.1 Each application shall be accompanied by a deposit of an amount to be decided by the HEC but which shall not be less than Rs. 5000. The deposit should be made in the form of an A/C payee Bank Draft drawn in favor of the Hall.
The deposit of selected applicants (contractor) shall remain with the hall as the security deposit until termination of the contract.

6.4.2 In case the HEC feels that the contractor has breached the contract, if any, at its discretion may impose fines on the contractor. Until all such fines are paid by the contractor, no payment shall be made by the hall to that contractor. The security deposit shall not be refunded until the term of the contract is over and all other financial transactions have been settled.

6.4.3 The maximum duration of any contractor shall be of one year.

6.4.4 Each party to the contract shall have a right to terminate the contract with one month notice without having to assign any reasons.

6.4.5 In the event of any dispute arising in the meaning/content of any terms or conditions, all contracting parties shall agree to be bound by the decision of an arbitration committee consisting of three Wardens.

6.4.6 The HEC may constitute a sub-committee committee for fixing and detailing of terms and conditions.

6.4.7 The contract for mess shall include the clause that, removal and appointment of any mess worker shall be done after due consultation with mess committee.

6.4.8 Additional Compulsory Terms and Conditions for all Mess Supply Contracts:-

1. The maximum patronage for a mess supply contractor shall be six months.
2. All supplies shall be made at the hall premises.
3. The quality and quantity of supplies must be as per contract and must be delivered within specified time limits. Supply tendered in excess of the quantity ordered shall not be paid for. In case the supply tendered is of unacceptable quality, the same shall not be paid for.
4. At the time of supply the supplier to the mess manager must submit printed and serially numbered bills. If the supplier fails to do so appropriate action may be recommended.
5. If the supplier fails to supply or the supply is tendered late on a day, appropriate action may be recommended.
6. Both in the text of the contract and when the contract is awarded, it shall be specified whether the supply is to be made at fixed prices or at wholesale market rates prevailing at Kanpur plus a fixed all inclusive charge decided when signing the contract. In the latter case, if the mess secretary finds the rates charged by the supplier at any time to be excessive, they shall recommend appropriate action.

Appendix 1

AI- GUIDELINES FOR THE MANAGEMENT OF HALLS
(Accepted by Senate in 2 nd Meeting 1986-1987)

INTRODUCTION

IIT Kanpur is a residential Institute, which requires that all registered students be residents. This commits the Institute to maintaining an adequate number of

halls, and operating them in a manner reflecting the objectives and values of its educational programme.

The responsibility for the administration of the Halls is vested, by the Director, in faculty members designed as Wardens. Such an assignment, which may be given to any faculty member, is part of the duty of the teaching staff.

The Senate, uploading the principle of required residence, lays down the framework which guides the functioning of Halls and the conduct of the residents. This academic body is thus concerned with the proper operation of residential facilities. A representative of the wardens is an ex-officio member of the Senate.

Residents are required to cooperate with the Wardens(s) in the running of the Hall. They must respect his/her authority in the execution of operational details- room allocation, fixing of schedules for payments, assessment of loss or damage to property assignment of duties to Hall Staff etc. They must abide by the norms of conduct and discipline applicable in the Institute and follow any regulation specifically laid down regarding conduct in the Hall. For infraction of discipline the warden is the immediate concerned authority. His/her responsibility in all such matters is to the Director, and not to civil authorities outside the Institute.

Failure to comply with the requirements and procedures applicable to residents may lead to disciplinary action which may include a review of individual's status as a student. The Senate approves of the application of academic sanctions- withholding of grades, withdrawal of permission to appear in examinations, cancellation of registration, etc. in connection with breaches of Hall regulations.

Wardens who are teachers are charged both with the efficient administration of the Halls and with promoting the educational development of the students residents. The students should be encouraged to participate in the matters concerning running of the Hall, to the maximum extent feasible, without hampering the warden's freedom to take necessary day-to-day execute decisions.

Committee(s) adequately representing all sections of the resident body should be constituted, to advise and assist the wardens in all matters. Power in various spheres should be delegated to these committees, as found appropriate.

The responsibility for ensuring that all such committees function in the best interests of the residents, and of the Institute, rests with the warden. Fostering a healthy degree of student involvement and participation is as much a part of the Warden's task as is the efficient running of the Mess and other facilities.

The above frameworks of objectives and directives shall guide the interpretation and implementation of the following guidelines and procedures for the Hall of Residence.

1. IIT Kanpur is a residential Institute and all registered students hereinafter referred to as 'residents' shall reside in the Institute Halls of Residence. All residents shall reside in the Hall to which they are assigned.
In exceptional cases the Director may permit a resident to reside with his or her parent or local guardian provided he or she pays full seat rent such other dues as may be prescribed from time to time. No part-time student shall be provided accommodation on Campus.

2. Allocations of Halls and allotment of rooms therein will be made by the Warden as per decisions arrived at in the Hall Management Council.

3.

a. Anyone allotted a room in the Hall Shall join the Hall Mess. However, the warden may exempt an individual from joining the mess on medical grounds for specified period.

b. During vacations messes in one or two Halls will function depending upon the need. The messes of Hall IV and V will function as far practicable. The residents will have to join one of these messes. The mess of Hall of Residence for Girls will also function during vacations. No other arrangement will be permitted.

4. Change of Halls of Residence will be permitted by both the concern wardens. This permission will be subject to any policy decision taken in this regard by the H. M. C.

5. At the time of a student's admission to the Hall of Residence, his/her parent/guardian may appoint, in writing, a local guardian who is authorized to act on his/her behalf. The list of all local guardians shall be kept in the appropriate offices of the Institute.

<u>RULES AND PROCEDURES IN HALLS</u>

1. Notwithstanding the provisional allotment, occupation of rooms will be permitted only after the resident furnishes proof of having paid all previous arrears, if any, and the mess advance. In general postgraduate, M. Sc. 2- year and other UG students beyond IInd year will be allotted single seated rooms.
   However, this cannot be claimed as a matter of right. All residents and others who cannot be accommodated in single- seated rooms shall be allotted double-seated rooms. This will further be subjected to the policy decision taken by H. M. C.

2. Residents will be personally responsible for the safe upkeep of the furniture and other items supplied to them in the rooms. They will be charged for any damage and loss caused by design or negligence during their occupancy.

3. All Hall dues shall be deposited in the Hall Office by cheque. However at the time of registration the dues will be accepted in cash only.

4. The extras over and above the basic menu will be provided only on purchase of coupons in advance.

5. Every resident must pay the mess bill by the due date announced by the wardens. The wardens will take steps to announce the mess bill within 3 weeks of the end of the mess-month. Failure to deposit the dues in time may result in fines or such other penalty as the warden may deem fit. The students who do not clear the dues of a month even after 30 days of the due date will have the registration for the semester cancelled unless the warden of the Hall is satisfied with the reasons for non-payment of dues. The notice for cancellation of registration/withdrawal from the semester will be sent to the parents/guardians and the concerned authorities of the Institute by the Dean of Students' Affairs on hearing from the concerned Warden.

6. Besides payments of mess dues, regular residents of a Hall will pay establishment charges every month at the rates prescribed from time to time in addition to Rs. 200/- p.a. towards mess establishment payable to the Institute.

7. Receipts in respect of payments of dues and advances must be preserved till the next registration date and produced in original whenever required by the Warden or any other authorized official.

8. A resident shall strictly adhere to the timings set down for meals.

9. No mattresses, bedsheets, pillows, pillow- covers, towels and curtains etc. will be provided.

10. Residents are not entitled to use any additional electric heating appliances in the rooms. However, this may be permitted on payment of extra charges, as determined by the Wardens and with the prior approval of the Warden.

11. A resident shall be required to vacate the room when leaving on a long vacation/leave – 15 days or more.

12. Fixing posters and pictures or writing on the common walls and disfiguring the walls of the Halls is strictly prohibited. Anybody found doing it will be fined by the Warden. However the places specially provided for posters etc. may be made use of for this purpose if the matters/material is not objectionable. In case any resident fixes posters inside his/her room, he/she will be responsible for any damages.

13. All games/sports activities in the Halls must be with the approval of concerned H. E. C.

14. Residents shall respect the right of each individual to express his/her ideas, pursue his/her interests and follow the style of life most meaningful to him/her.
15. Internal victimization or harassment of anyone who is in a minority position, or is unpopular for any reason, will be treated as a serious offence.

16. Before leaving for an overnight or longer stay off campus, a resident must indicate his/her destination and expected duration of absence in writing to the warden. In the event of unexpected absence from the Hall, the resident must report to the Hall immediately after return.

17. The residents shall not have any guests living in their rooms without prior permission of the warden.

18. To protect the privacy of the residents of the Halls, visitors of the opposite sex are emphatically discouraged in the rooms. However, between 12.00 midnight to 6.00 a.m. the opposite sex visitors are strictly prohibited to enter the residential blocks of the Halls.

19. All residents shall comply with the rules and supplementary rules and bylaws as may be framed from time to time. Ignorance of any of these shall not be accepted as an excuse for its non- observance on the part of a resident. For any violation of the rules and for any act of indiscipline, the warden shall take whatever action is deemed necessary at the Hall level. In case of serious offence, he/she shall refer the matter to the Senate Students' Affairs Committee.

MANAGEMENT OF HALLS

1. 1. The authorities and responsibilities concerning policy decision and central administration of mess shall rest with the council of Wardens.
2. The council of Wardens shall comprise of the Chairman nominated by the Director, one member nominated by the Director, two wardens nominated by Hall Management Council (HMC) and three nominees of the Students' Senate.
3. Both the Chairman and member nominees of the Director shall be the ex-wardens. The term of the Chairman and that of the member will be one year. On completion of the term of the Chairman, The member nominee of the Director will become Chairman for a term of one year.
4. The wardens nominated by the HMC will be from amongst the members of HMC. The term of these wardens and of students nominees will be one year. The student nominees shall preferably not be the members of the Hall Executive Council (HEC). The Secretary of the COW will be the officer-in-charge of the Central Hall Office.
5. The authority and responsibility for handling and supervision at the inter hall level of maintenance, general amenities and accounts of the Hall shall rest with the Hall Management Council.
6. The Hall Management Council (HMC) shall consist of The Dean of Students' Affairs as ex-officio Chairman, all Wardens, Hall President and Mess Secretary of All Halls, and a nominee of the Presidents, Student Gymkhana.
7. The HMC shall have standing Maintenance Committee and Accounts Committee each of these having 6 to 8 members.
8. Each Hall of residence shall be managed by a Hall level Committee called the Hall executive Committee (HEC). The HEC shall consist of all the Wardens of the Hall, President, Mess Secretary and 3-5 representative of the residents of the Hall as may be laid down in the Constitution of the Hall. The warden-in-charge shall be the Chairman, and the Hall President shall be the Convener of HEC.
9. The Hall Presidents and the Mess Secretary shall be from amongst the registered students only.
10. If any HMC member who is HEC disagrees with a decision of HEC, he/she can ask for a referendum on such issues.
11. The decision arrived at in the referendum will be accepted, except in the following two situations:

a. In the opinion of the Warden(s), a decision may have far reaching effects regarding mess employees, In such a case, the Warden is entitled to refer it to COW for final decision.
b. An HMC Member in the HEC is of the opinion that the decision is likely to affect other Halls. In that case he/she may refer it to HMC for final decision.

12. Warden I/c shall be the Head of the Section in the case of Institute employees posted in the Halls and any matter relating them shall be referred to the Dean of Students' Affairs/Director.

Each Hall shall have a Constitution duly approved by the Senate. The Constitution will incorporate among other things, the procedure for the election of office bearers, Constitution of the mess committee and the functional aspects of H.E.C.

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Implementation Mechanism of Guideline B-18
(Approved by Senate in 1987-88 (8 th Meeting)

1. Between 12.00 mid night and 6.00 a. m. the visitors of the opposite sex are strictly prohibited inside the residential blocks of the Halls.

2. Between 6.00 a. m. and 12.00 midnight:
    a. The visitors of the opposite sex must be accompanied by the concerned resident from the entrance of the Hall of Residence.
    b. The residents may meet their visitors in the visitors' lounge, earmarked for the purpose in each Hall.
    c. A resident may also take his/her visitors of the opposite sex to his /her room, however, in such cases the resident must ensure that:
        i. Each visitor enters his/her name, address, times of arrival and departure in the register maintained for this purpose and sign the register:
        ii. he/she also enters his/her name and signature in the register; and
        iii. the privacy of the other residents is not disturbed.

Appendix 2

ORDINANCE NO. 11
HALLS OF RESIDENCE

11.1 IIT Kanpur is a residential Institute and, therefore, every registered student shall reside in a room assigned to him in one of the Halls of Residence. In exceptional cases, the Director may permit a student to reside with his or her parent/local guardian. Such students shall, however, pay full seat rent and such other dues as may be prescribed from time to time. Part time students are not eligible for accommodation in the Halls of residences.
11.2 For each Hall of Residence there shall be a Warden-in-Charge and such other number of Wardens and other staff as may be determined by the Board of Governors from time to time. The office of the Warden-in-Charge and other Wardens shall be held by the members of the academic staff of the Institute. These appointments shall be made by the Director. The Warden-in-Charge of a Hall shall be responsible for managing the Hall efficiently.
11.3 Every student residing in a Hall shall join the Hall Mess. However, the Warden-inCharge may exempt an individual student from the Hall Mess on medical grounds for a specified period.
11.4 During Institute vacations, messes of a few Halls will function, depending upon need. All students staying in the Halls during vacation shall have to join one of these messes. No other arrangement will normally be permitted.
11.5 Each Hall of Residence shall have a Hall Executive Committee (HEC). The Constitution of the HEC and its functions shall be as decided by the Senate.
11.6 Every resident shall be personally responsible for the safe upkeep of the furniture and other items supplied to the resident and will be charged for any damage or loss caused by design or negligence during the occupancy of the room.
11.7 Every resident must pay the mess bill by the due date, announced by the Warden. Failure to deposit the dues in time may result in fine or such other penalty as the Warden may deem fit. Even the registration of a student may be cancelled in case of failure to clear the mess dues within 30 days of the due date.
11.8 Besides the payment of mess dues, every resident will also pay establishment charges every month at the rate prescribed from time to time by the Warden-in-Charge. This is in addition to the mess establishment charges payable to the Institute.

11.9 Residents shall respect the right of each individual to express his/her ideas, pursue his/her interests and follow the style of life most meaningful to him /her. However, party based political campaigning is prohibited.
11.10 Visitors of the opposite sex are strictly prohibited to enter the residential blocks of the Halls during 0000 to 0600 hours. Further, they shall be emphatically discouraged to enter the residential rooms at all times.
11.11 Use of liquor, drugs, or any other intoxicants in the Hall premises is strictly prohibited.
11.12 Every resident shall comply with all the rules and regulations of the Halls of Residence as may be in force from time to time. The Warden-in-Charge shall take necessary action against the defaulters.

An extract from Ordinance No. 9

9.4 The Warden-in-Charge of the Hall of Residence concerned shall have the power to reprimand or impose fine or take any such suitable measures against any resident of the Hall, who violates either the rules & regulations or the Code of Conduct pertaining to the Hall of Residence concerned.

Statute 23
Halls and Hostels

(1) The Institute shall be a residential institution and all students, research scholars and research fellows shall reside in the Halls of Residence and Hostels built by the Institute for the purpose. In exceptional cases the Director may permit a student, scholar or fellow to reside with his parent or guardian, but where any such
permission is accorded to a student, scholar or a fellow, such student, scholar or fellow, as the case may be, shall be liable for the payment of such seat rent as he would have been liable for the payment of seat rent had he resided in the Hostel.

(2) Every resident in the Halls and Hostels shall conform to rules laid down by the Senate for the purpose.

(3) For each Hall of Residence there shall be a Warden and such number of Assistant Wardens and other staff as may be determined by the Board from time to time.

(4) The offices of Warden and Assistant Warden shall be held by the members of the Academic Staff of the Institute. The appointments shall be made by the Director.

(5) Wardens and Assistant Wardens shall be entitled to rent free unfurnished quarters corresponding to the type of quarters to which they are normally entitled as teachers of the Institute. In addition, they shall be paid an allowance of Rs.50 per month

Appendix-3
Rules and Regulations

1. Smoking cigarettes and consumption of any tobacco product, any alcohol product or any intoxicant is strictly prohibited inside the hall premises.

2. General body members are expected to contact the concerned HEC member or committee directly in case of any problems, either in person, by mail or phone or through the committee convener. HEC members shall also ensure that general body members can reach them easily when required.

3. All and only the HEC members have the right to send e-mails to all hall residents.

4. There are no entry restrictions on entry timings or activity timings in the hall. However, the privacy of every individual must be respected.

5. Warden may impose a fine or punishment if any student violates any rules or procedures of the Hall. In case the student does not accept the charges, the case shall be discussed in the HEC, and only after the HEC establishes the offence beyond reasonable doubt, the punishment shall be given.

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6. Warden with consultation with the HEC may have a policy of fines on pending mess dues. Warden may waive-off fines from financially weak students giving written application stating their inability to pay fines.

7. Residents should not do any harm to the properties of the hall. Dirtying walls, stealing items or breaking equipment may lead to the imposition of heavy fines.

8. It is the binding duty of every resident of the hall to live in harmony with other residents, take proper care of their hall and abide by the rules and regulations of the hall.

9. Students may be asked to vacate their rooms when required for a specific purpose or as Institute policy. Normally, the HEC shall give a window of at least 72 hours for it, with extensions subject to approval by the warden. The notice for shifting to a different hall shall be given at least two weeks in advance.

10. Specific rules and the scheme of fines shall be decided by the HEC at the beginning of the tenure.